

1.

CASE #	CASE NAME	HEARING NAME
CVRI2304076	MCWILLIAMS VS GENERAL MOTORS, LLC	MOTION TO DISMISS CASE FOR FAILURE ABANDONMENT OF CASE

Tentative Ruling:

No Tentative Ruling. Hearing required.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404392	WELLS FARGO BANK, NATIONAL ASSOCIATION VS DESERT OPHTHALMOLOGY MEDICAL CORPORATION	MOTION TO COMPEL DISCOVERY RESPONSES FROM DEFENDANT WALLACE FRANKLIN GOLDBAN

Tentative Ruling:

GRANT

Defendant Wallace Franklin Goldban is ordered to provide verified responses to the Special Interrogatories propounded by Plaintiff, without objection, within 20 days.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501075	LOGGINS VS DMSI STAFFING LLC	MOTION TO STAY CASE

Tentative Ruling:

DENY

Effective January 1, 2024, CCP § 1294(a) eliminated the automatic stay of trial court proceedings that previously flowed from CCP § 916. Although CCP § 1294(a) expressly eliminated the automatic stay, the Court retains its discretion to stay such proceedings in the interests of justice. In determining whether to issue a stay, courts traditionally balance four factors: (1) whether the stay applicant made a strong showing that it is likely to succeed on the merits on appeal; (2) whether the applicant will be irreparably injured absent a stay; (3) whether the stay will substantially injure other parties; and (4) whether the stay is in the public interest. (*Finder v. Leprino Foods Co.*, 2016 U.S. Dist. LEXIS 100417, at 13-14, citing *Nken v. Holder* 556 U.S. 418, 434 (2009)).

Here, Defendant moving party has not established that it is likely to succeed on the merits of its appeal. Defendant's outright refusal to pay the initial arbitration retainer is willful nonperformance. Defendant cannot claim that their "nonpayment of fees resulted